

LEAVE, LICENSE AND REVENUE AGREEMENT

This Agreement (hereinafter referred to as the “**Agreement**”) is made and entered at New Delhi, on this 15th day of September 2026, (hereinafter referred to as the “**Effective Date**”), for any and all purposes;

BY AND BETWEEN

CROWNEST HOSPITALITY LLP, a partnership incorporated and registered under the Limited Liability Partnership Act, 2008 and the Rules framed thereunder, bearing LLP Identification Number ACO-6810, having its Registered Office at Site 5, Surajpur Kasma Road, Industrial Area, G-107, Greater Noida, Gautambuddha Nagar, Uttar Pradesh 201312, India, acting through its designated Partner, Mr. Abhishek Jindal, bearing Permanent Account Number ATLPJ8048F, authorised vide Minutes of meeting convened on July 5, 2025, to sign and enter into this Agreement (hereinafter referred to as “**Licensor**” which term shall mean and include, unless repugnant to the context or meaning thereof, its successors and permitted assigns) of the **FIRST PART**;

AND

Elleven Hospitality and Marketing Private Limited, a private company registered under the provisions of the Companies Act, 2013, bearing GST Registration Number 09AAJCE6802C1ZT, having its Registered Office at House No. HA-91, HA Block, Sector 104, Noida, Gautam Buddha Nagar, Uttar Pradesh - 201304, and operating the food and beverage brand “**Momo Box**”, acting through its authorised signatory Mr. Wasim Khan, authorised to sign and enter into this Agreement (hereinafter referred to as “**Licensee**” which term shall mean and include, unless repugnant to the context or meaning thereof, its successors and permitted assigns) of the **SECOND PART**.

For the purpose of this Agreement, the Licensor and the Licensee are hereinafter collectively referred to as the “**Parties**” and individually referred to as the “**Party**”, as and where the context may require.

IN CONSIDERATION THEREOF, the Licensor licensing certain premises to the Licensee, the Licensee licensing those premises from the Licensor along with mutual benefits and obligations set forth in this license, the receipt and sufficiency of which consideration is hereby acknowledged, the Parties to this Agreement agree as follows:

A. WHEREAS Capital Infratechomes Pvt. Ltd. (hereinafter referred to as the “**Landlord**”) is seized and is possessed of all that of a space, situated at vacant space in the Commercial space outside Capital Athena, Sector 1, Noida, Uttar Pradesh 201318, India, along with the interests, easements, privileges, with rights in common entrances, passages, facilities and amenities (including running electricity), the details of which are stipulated under SCHEDULE I of this Agreement, (hereinafter referred to as the “**Premises**”), is in complete control of the Premises and has also obtained the 24x7 running electricity from the concerned authorities for the Premises, as on the Effective Date.

B. WHEREAS the Licensor herein is the tenancy rights’ holder of the Premises under the terms of the rent agreement dated 26 May 2026 between the Licensor and the Landlord (hereinafter referred to as the “**Rent Agreement**”), upon such terms and conditions as stipulated and mutually agreed therein.

C. WHEREAS pursuant to the Rent Agreement, the Landlord has let out to the Licensor and the Licensor has taken on rent the Premises for the purpose of operating a food and beverage hospitality outlet in the Premises, in respect of which the date of launch is projected to be September 01, 2026.

D. WHEREAS the Licensor is now desirous of entering into this Agreement with the Licensee to grant leave and license for a vacant piece / parcel of land admeasuring 70 sq. ft. (approximately) out of total land under the Premises, situated at the Commercial space outside Capital Athena, Sector 1, Noida, Uttar Pradesh 201318, India (hereinafter referred to as the “**Licensed Premises**”) together with all the amenities, the details of which are stipulated under SCHEDULE II of this Agreement, for a tenure period of three (3) years from the Effective Date (hereinafter referred to as “**Tenure Period**”), upon such terms and conditions as stipulated under this Agreement.

E. WHEREAS the Licensor shall construct, fabricate and place of Food Trailer (hereinafter referred to as “**Food Trailer**”) upon the Licensed Premises of the Licensee, in order to enable the Licensee to utilize the

Food Trailer for the sole purpose of running its food and beverage business or for any other purpose as may be mutually agreed between the Parties, during the Tenure Period.

F. WHEREAS it shall be compulsory and mandatory for the Licensee to obtain the Food Trailer solely from the Licensor, upon the agreed terms and conditions, and not from any other third party for the purpose of running its food and beverage business upon the Licensed Premises. It is further clarified that the Licensee shall not have the right of obtaining the Food Trailer from any other third party or to run its food and beverage business without a Food Trailer for the same.

G. WHEREAS for utmost clarity, the Parties have agreed that the Licensee shall remain the sole and exclusive owner of the Food Trailer situated at the Licensed Premises and no rights, title or interest shall ever be created in favour of the Licensor with respect to the Food Trailer. The trailer to be handed over post the Expiration Date (*defined later*) or the termination of this Agreement (as the case may be) on payment of all the dues to the lessor.

H. WHEREAS the Parties duly affirm and declare that their respective authorised signatories have been duly authorised by the Licensor and Licensee respectively and are capable to sign and enter into this Agreement, at their own free will and expense, under the applicable laws, rules and regulations, for the time being in force as on the Effective Date.

NOW THEREFORE, IN CONSIDERATION OF THE ABOVE RECITALS, WHICH ARE HEREBY INCORPORATED INTO THIS AGREEMENT, AND IN CONSIDERATION OF THE MUTUAL PROMISES MADE HEREIN, THE RECEIPT AND SUFFICIENCY OF WHICH ARE HEREBY ACKNOWLEDGED, THE PARTIES FURTHER AGREE AS FOLLOWS:

1. GRANT OF LICENSE

- a) The Licensor hereby grants to the Licensee and the Licensee hereby accepts from the Licensor, a license to use and occupy the Licensed Premises along with the Food Trailer, as set out in Schedule II, for the Tenure Period, subject to the terms and conditions as set forth under this Agreement.
- b) Save as aforesaid, the Licensee shall have no right, title or interest in the said Premises or structure and shall not be entitled to claim the right of lessee, sub lessee, tenant or any other interest in the Premises or outfit, it being specifically agreed and declared in particular that the Licensee shall not be deemed to be in exclusive possession of the Premises.

2. TENURE / TERM OF LICENSE

- a) The Agreement shall be valid, subsisting and continue to operate for Tenure Period from the Effective Date i.e., September 15, 2026, till September 14, 2029 (hereinafter referred to as the **“Expiration Date”**), unless the same is terminated before the Expiration Date in accordance with the terms and conditions set out in this Agreement.
- b) The Parties hereby agree that at the commencement of the Tenure Period, a period of eleven (11) months from the date of handover of the Food Trailer by the Licensor to the Licensee shall be considered as a ‘Lock-In Period’, and the Licensee shall have no right to terminate this Agreement, unless upon the reasons of *Force Majeure* and as may be mutually agreed with the Licensor or for any other reasons which may entitle the Licensee to do so strictly in accordance with Clause 12(d) (*Termination*) of this Agreement.

3. LICENSE FEE AND REVENUE SHARING

- a) The Licensee shall pay the License Fee of Rs. 50,000/- (Rupees Fifty Thousand only) (hereinafter referred to as **“License Fee / Minimum Guarantee”**) along with applicable Goods and Services Tax, payable in advance on or before the 7th day of each month (hereinafter referred to as the **“Due Date”**), commencing from the 1st day of the month of the Effective Date or the date of handover of the Food Trailer by the Licensor to the Licensee, whichever is earlier.

Provided that the Licensee shall remit the License Fee, after any deduction of Tax Deducted at Source (TDS) and shall separately deposit the applicable TDS Amount with the concerned Tax Department.

The Licensee shall ensure that all sales are duly invoiced and recorded. Any cash sale or sale without issuance of proper invoice shall be strictly prohibited and shall attract penalties as may be imposed by the Licensor.

The Parties hereby agree that the License Fee / Minimum Guarantee shall be subject to an escalation of six (6) percent per annum, effective on each anniversary of the Effective Date during the Tenure Period.

b) The Parties to this Agreement, hereby agree that the revenue / sale receipts that are generated by the Licensee from the operation of the business upon the Licensed Premises during the course of each calendar month (hereinafter referred to as **“the Revenue”**), subject to the deduction of taxes under the provisions of the applicable laws (hereinafter referred to as **“the Gross Sales”**), shall be shared between the Licensor and Licensee in the following manner:

i. On and from the Effective Date, the Licensee shall pay an amount equivalent to eighteen (18) percent of the Gross Sales (excluding GST) (hereinafter referred to as the **“Revenue Share”**) to the Licensor, on the 1st day of every month as per **ANNEXURE – 1** of this Agreement.

ii. For the purposes of this Agreement, ‘Gross Sales’ shall mean the total billing generated by the Licensee from the Licensed Premises including, without limitation, dine-in sales, takeaway orders, online delivery orders, and all other modes of sale, whether through physical or digital platforms, but excluding Goods and Services Tax (GST).

Provided that the Licensee shall ensure a minimum payment of either the License Fee / Minimum Guarantee, i.e., Rs. 50,000/- (Rupees Fifty Thousand only) OR the total amount of the Revenue Share, whichever is higher, to be paid to the Licensor, and the same shall be levied by way of a bill raised on the 2nd of every month by the Licensor and shall be payable on or before the 7th day of every month.

c) The Licensee shall share daily sales reports with the Licensor and shall provide access to its Point of Sale (POS) systems as and when required by the Licensor for verification and audit purposes. In the event the Licensor incurs any penalty, fine, legal cost or compensatory payment by reason of any act, omission, non-compliance or breach by the Licensee (including but not limited to any penalty imposed by the Landlord on account of the Licensee’s operations), the Licensor shall be entitled to recover such amount by adding the full amount of such loss to the Revenue Share or License Fee (as applicable) payable by the Licensee or Post-Dated Cheques payable by or held on behalf of the Licensee (hereinafter referred as the **“PDCs”**), without prejudice to any other remedy available to the Licensor under this Agreement or applicable law.

d) It is clarified that the charges for the maintenance of the common area, including, but not limited to, utilities (including water), maintenance of the Licensed Premises, security services, housekeeping supplies, disposal of garbage, etc. (hereinafter referred to as the **“Common Area Maintenance (CAM)”**) shall be payable for an amount of Rs. 20,000/- (Rupees Twenty Thousand only) over and above the License Fee or the Revenue Share (as applicable). It is hereby agreed that the aforesaid Common Area Maintenance (CAM) charges shall be subject to revision after an initial period of three (3) months from the Effective Date, based on actual operational costs and expenses incurred, and such revised amount shall be binding upon the Licensee.

e) In terms of this Agreement, the Licensee has handed over a total of three (3) undated PDCs to the Licensor towards the License Fee / Minimum Guarantee or the Revenue Share (as applicable) which becomes due every month.

f) The Licensor shall be at liberty to deposit the PDC for the purpose of remission of License Fee or the Revenue Share, in case (i) the Licensee has requests the Licensor to utilize the PDC; or (ii) the Licensee fails in paying the License Fee or the Revenue Share on or before the Due Date.

g) All payments under this Agreement shall be made through banking channels only. Any delay in payment beyond ten (10) days from the Due Date shall attract interest at the rate of eighteen (18) percent per annum, calculated on a monthly basis.

h) In case the Licensee defaults in payment of the License Fee for any month, the Licensee shall be liable to pay interest in accordance with this Agreement along with the outstanding amount:

i. It is clarified that in case the default continues even after the expiry of a period of thirty (30) days from the Due Date, then the Licensor shall have the right to issue a notice for termination of this Agreement and seek for vacation of the Licensed Premises within thirty (30) days (“hereinafter referred to as ‘Cure Period for License Fee or Revenue Share’”) from the date of issuance of the notice;

ii. In case the entire default amount along with the interest is not paid by the Licensee then the Licensee shall peacefully vacate the Licensed Premises, without any protest and hand-over the peaceful possession of the Licensed Premises and the Food Trailer to the Licensor along with the due payment of the outstanding amount accrued as the License Fee or Revenue Share (as applicable) and the interest thereon calculated in accordance with Clause 3(g) above in not later than five (5) days after the expiry of the Cure Period for License Fee or Revenue Share.

4. ONE-TIME ONBOARDING FEE

a) The Licensee shall pay an amount equivalent to Rs. 1,50,000/- (Rupees One Lakh Fifty Thousand only) plus applicable GST to the Licensor, as a non-refundable onboarding fee towards entering into this Agreement and obtaining the License to utilize and occupy the Licensed Premises along with the Food Trailer. This onboarding fee is inclusive of the following services to be provided by the Licensor:

- i. Common infrastructure development;
- ii. Electrical distribution setup;
- iii. Water connection and drainage provisioning;
- iv. Last-mile utility passage to individual outlets;
- v. Common seating and customer area setup;
- vi. Centralised waste management and hygiene infrastructure;
- vii. Project design, planning and execution costs;
- viii. Branding, signage and thematic development of the area;
- ix. Music and entertainment setup;
- x. Security systems including CCTV and manpower setup (common area);
- xi. Technology setup including WiFi and system integration;
- xii. Common area lighting and ambience creation; and
- xiii. Operations setup and overall ecosystem development.

5. PAYMENT OF OUTGOING EXPENSES

a) From the Effective Date, the Licensee shall, at its own cost and expense, bear and pay all operational and business-related expenses in respect of the Licensed Premises and the Food Trailer including, without limitation, electricity, water, gas, employee wages and statutory dues, insurance, maintenance of equipment, municipal taxes, regulatory and other licenses, permits, approvals and all other costs necessary for conducting its business.

b) The sanctioned electricity load for the Licensed Premises shall range between twelve (12) to fourteen (14) kilowatts. The electricity consumption shall be charged at applicable commercial tariff rates, including without limitation, the (i) electricity charges at Rs. 10 (Rupees Ten only) per unit consumed; (ii) diesel generator charges at the rate of Rs. 180 (Rupees One Hundred and Eighty only) per kilowatt; and (iii) Noida Power Company Limited fixed charges at the rate of Rs. 120 (Rupees One Hundred and Twenty only) per kilowatt and shall be payable by the Licensee on actual consumption basis.

c) All costs and expenses towards fuel, including but not limited to PNG, LPG or any other fuel required for the operations of the Licensee, shall be borne solely by the Licensee on actuals.

6. WORKING HOURS OF THE LICENSED PREMISES

a) The Licensee shall be permitted to operate for 24 (twenty-four) hours each day, subject to applicable laws and regulations. It is clarified that subject to the requisite permissions granted by the other concerned and relevant statutory authorities to the Licensee, whereby, the operation hours are decreased, then the same may be decreased without the prior approval of the Licensor.

7. SOLE LIABILITY OF THE LICENSEE FOR REGULATORY AND STATUTORY COMPLIANCES

a) The Licensee shall be solely responsible for:

- i. any loss or damage caused to the Licensed Premises, Food Trailer or surrounding property due to its acts, omissions, employees, agents or customers;

- ii. obtaining and maintaining all licenses, permits and statutory approvals required for its business operations; and
 - iii. compliance with all applicable laws, labour laws, food safety regulations, tax laws and municipal regulations.
- b) The Licensee shall comply with all sustainability and guidelines, including prohibition on single-use plastics and adherence to prescribed waste segregation and disposal norms.
- c) The Licensee shall ensure that all its staff deployed at the Licensed Premises are in proper uniform and maintain high standards of hygiene, grooming, and professional conduct at all times.
- d) The Licensee shall be responsible for daily cleaning and upkeep of the Licensed Premises and its immediate surroundings. Waste disposal shall be carried out only at designated areas within or outside the Licensed Premises, the changes to which may be communicated by the Licensor from time to time.
- e) The Licensee shall, at its own cost, obtain and maintain: (a) a comprehensive public liability and product liability insurance policy with a minimum sum insured of Rs. 50,00,000/- (Rupees Fifty Lakhs only) covering food-related claims, personal injury, illness or death arising from food or beverages served at the Food Trailer; (b) fire insurance; and (c) employer's liability insurance, all naming the Licensor as an additional insured. Copies of all insurance policies shall be provided to the Licensor prior to commencement of operations and upon each renewal. The Licensor shall bear no liability for any claim that falls within the scope of any such required insurance policy.
- f) The Licensee shall indemnify and hold harmless the Licensor against any claims, losses, penalties, damages or liabilities arising out of the Licensee's operations or non-compliance in accordance with Clause 13 (*Indemnity*) of this Agreement. Without prejudice to the generality of the foregoing, the following food safety and compliance obligations shall be mandatory and their breach shall constitute a material breach of this Agreement: (a) **FSSAI Licence**: The Licensee shall obtain and maintain a valid registration / licence obtained from the Food Safety and Standards Authority of India (hereinafter referred to as the "FSSAI") throughout the Tenure Period, and shall provide a copy to the Licensor prior to operations and upon each renewal; (b) **Food Safety Audits**: The Licensee shall submit to monthly food safety and hygiene audits by the Licensor or its nominee, bearing the cost of any audit where a deficiency is found; (c) **Food Sample Retention**: The Licensee shall preserve the last seventy-two (72) hours' food and beverage samples in labelled, dated, sealed containers at all times for random NABL-accredited testing at the Licensor's direction; (d) **Medical Fitness**: All food-handling staff shall hold current medical fitness certificates renewed every six (6) months; (e) **Regulatory Notification**: The Licensee shall notify the Licensor in writing within twenty-four (24) hours of any regulatory inspection, notice, complaint or adverse finding; and (f) **Ingredient Traceability**: The Licensee shall maintain complete purchase records and ingredient traceability documentation, available to the Licensor within twenty-four (24) hours of request.
- g) The Licensee shall indemnify and hold harmless the Licensor and its partners, officers, employees and representatives, from and against all claims, losses, damages, liabilities, penalties, fines, costs and expenses (including reasonable legal fees) arising out of or in connection with: (i) the Licensee's operations, acts, omissions, employees, agents or contractors; (ii) any food safety, contamination, hygiene or quality failure at the Food Trailer, including any illness, injury or death of any person; (iii) any regulatory non-compliance, inspection, prosecution or penalty levied by FSSAI, FDA, health authorities, or any other authority arising from the Licensee's operations; (iv) any penalty, notice or action issued by Landlord to the Licensor arising from the Licensee's operations or non-compliance; (v) any reputational harm caused to the Licensor or the Landlord arising from the Licensee's operations; and (vi) any breach of this Agreement by the Licensee. This Clause 7 (*Indemnity*) shall survive termination or expiry of this Agreement.

8. REPRESENTATION AND WARRANTIES

- a) The Licensor hereby states the represents and warrants, subject to the terms set out in this Agreement:

- i. Each Party represents that it has full authority to enter into this Agreement and perform its obligations hereunder.
- ii. The Licensee further represents that it shall use the Licensed Premises strictly for the permitted commercial purpose and in compliance with applicable laws. The Licensee further represents, warrants and expressly acknowledges that: (a) the Licensor is acting solely as an intermediary facilitating the use of space within the Premises, and bears absolutely no responsibility for the food and beverage operations of the Licensee; (b) the Licensor shall not be liable for any claim, injury, illness, death or loss arising from consumption of any food or beverage served by the Licensee; (c) the Licensee is an independent contractor and its employees, agents and contractors are not employees or agents of the Licensor; (d) the Licensor's obligations are limited to providing access to the Licensed Premises and the Food Trailer in accordance with the terms of this Agreement, and do not extend to supervising, monitoring or guaranteeing the quality or safety of the Licensee's food operations; and (e) any failure by the Licensor's representatives to identify or report a food safety violation during any inspection shall not constitute a waiver of the Licensor's rights or relieve the Licensee of its obligations under this Agreement.
- iii. The Licensor, in respect of the participating brand(s), shall provide secure and documented API access required for the integration of the ETL application. The APIs must support agreed-upon data exchange standards, authentication protocols, and performance requirements to enable seamless extraction, transformation, and loading of data between systems. The Licensor shall, for each brand, ensure timely API availability, necessary technical support, and notification of any API changes that may impact the integration.

9. FORCE MAJEURE

- a) Neither Party shall be liable for any delay or failure in performance of its obligations under this Agreement if such delay or failure is caused by events beyond its reasonable control including acts of God, war, riot, governmental restrictions, epidemic, natural calamity or change in law rendering performance impossible.
- b) The affected Party shall notify the other Party in writing within seventy-two (72) hours of the occurrence of such event.

10. MENU APPROVAL AND CONTROL

a) Approved Menu

The Licensee shall operate its food and beverage business strictly in accordance with the menu as prior approved in writing by the Licensor (hereinafter referred to as the **"Approved Menu"**). The Approved Menu, duly signed and initialled by both Parties, shall be annexed to this Agreement and shall form an integral and binding part of this Agreement.

b) Restriction on Additions, Deletions, or Modifications

The Licensee shall not add, delete, substitute, modify, rename, re-price, or otherwise alter any item(s) in the Approved Menu, whether directly or indirectly, including but not limited to changes on physical menus, digital menus, POS systems, aggregator platforms, including without limitation, Zomato and Swiggy, promotional material, or any other medium, without obtaining the prior written approval of the Licensor.

c) Approval Process

Any proposed change to the Approved Menu shall be submitted by the Licensee to the Licensor in writing, along with complete details of the proposed change by way of Email at crownesthospitality@gmail.com. The Licensee shall implement such change only upon receipt of express written approval from the Licensor. Silence, delay, or non-response by the Licensor shall not be deemed as approval. Additionally, all menu items shall use only FSSAI-approved and traceable ingredient sources, and the Licensee shall maintain a complete ingredient register available for inspection at all times. The Licensor shall have the right, at any time and without prior notice, to conduct surprise inspections of the kitchen, ingredients, storage areas and POS records to verify compliance with the Approved Menu and food safety standards. Any item found being

sold or prepared outside the Approved Menu during such inspection shall attract an immediate penalty of Rs. 25,000/- (Rupees Twenty-Five Thousand only) per item per instance, recoverable without prejudice to the Licensor's right to terminate. The Licensor may at any time withdraw approval of any menu item on food safety or quality grounds, and the Licensee shall cease serving such item within twenty-four (24) hours of written intimation.

d) Compliance Obligation

The Licensee acknowledges that menu standardisation and control are material conditions of this Agreement. The Licensee shall ensure strict adherence to the Approved Menu at all times during the Tenure Period.

e) Breach and Termination

Any addition, deletion, modification, or deviation from the Approved Menu without the prior written approval of the Licensor shall constitute a material breach of this Agreement. In the event of such breach:

- i. the Licensor shall have the right to issue a written notice to the Licensee to cure such breach within seven (7) days from the date of receipt of such notice; and
- ii. if the Licensee fails to cure the breach within the said period, the Licensor shall be entitled to terminate this Agreement forthwith, without prejudice to any other rights, remedies, damages, or claims available under this Agreement or applicable law.

f) Effect of Termination

Termination pursuant to this clause shall be deemed a termination due to Licensee's default, and the Licensee shall not be entitled to any refund, compensation, or damages of any nature whatsoever.

11. FOOD QUALITY AND HYGIENE COMPLIANCE

a) The Licensee shall maintain strict hygiene and food safety standards. In the event of any violation relating to food quality, contamination, or hygiene:

- (i) First instance – Written warning along with a penalty of Rs. 10,000/- (Rupees Ten Thousand only);
- (ii) Second instance – Written warning along with a penalty of Rs. 20,000/- (Rupees Twenty Thousand only);
- (iii) Third instance – Final warning along with a penalty of Rs. 30,000/- (Rupees Thirty Thousand only).

In respect of each of the aforesaid instances, the Licensee shall be granted a cure period of seven (7) days from the date of written notification by the Licensor within which to remedy the violation. High-impact or cumulative cases shall be handled separately at the sole discretion of the Licensor.

b) Repeated or severe violations may result in immediate termination of this Agreement, at the sole discretion of the Licensor. In the event that any penalty, show-cause notice, termination notice or adverse regulatory action is issued by or on behalf of Landlord against the Licensor arising directly or indirectly from the Licensee's food quality, hygiene or safety non-compliance, the Licensor shall be entitled to: (a) immediately terminate this Agreement without any cure period or further notice; and (b) recover from the Licensee, as a debt, the full amount of any penalty, fine, legal cost or compensatory payment imposed upon or incurred by the Licensor by reason of the Licensee's non-compliance, including by invoking the PDCs provided by the Licensee.

12. TERMINATION

a) The Licensor may, after the expiry of the Lock-In Period terminate this Agreement by giving a sixty (60) days' written notice upon occurrence of any of the following:

- i. material breach of this Agreement not cured within the notice period;
- ii. insolvency, liquidation or winding up of the Licensee;
- iii. cancellation or suspension of any mandatory business license, permit and/or approval required for Licensee's business operations.

b) Upon termination, the Licensee shall vacate the Licensed Premises and hand over peaceful possession within three (3) days.

c) The termination of this Agreement shall be without prejudice to the rights and remedies of either Party in respect of any antecedent breach. In the event of termination of this Agreement the Licensee shall not be entitled to any compensation or claim any loss or damages from the Licensors in respect of goodwill or otherwise.

d) The Licensee shall be entitled to terminate this Agreement, after expiry of the Lock-In Period, only by way of a prior ninety (90) days' written notice to the Licensors and in the event of such a termination, the Licensee shall not be entitled to any compensation or claim any loss or damages from the Licensors in respect of goodwill or otherwise. Notwithstanding the termination of this Agreement for any reason whatsoever, the following obligations of the Licensee shall survive and continue in full force: (a) the indemnity obligations under Clause 13 (*Indemnity*); (b) liability for any food safety, hygiene or quality incident that occurred during the Licensee's period of operations; (c) liability for any regulatory penalty, inspection outcome or enforcement action relating to the Licensee's period of operations; and (d) the obligation to pay any outstanding dues, penalties or amounts owed to the Licensors under this Agreement.

e) Both the Parties hereby agree that on and from the Expiration Date, this Agreement shall automatically stand terminated, unless both the Parties mutually agree to renew the Agreement on such terms and conditions, as may be stipulated therein.

f) Notwithstanding anything contained herein, the Licensors shall have the right to terminate this Agreement with immediate effect upon occurrence of any of the following events:

- i. non-payment of the License Fee beyond thirty (30) days from the Due Date;
- ii. non-compliance with statutory or regulatory requirements;
- iii. reputational harm caused to the Landlord or Licensors;
- iv. failure to maintain hygiene, sanitation, or safety standards;
- v. improper waste management practices;
- vi. any show-cause notice, penalty order or termination notice issued by Landlord to the Licensors arising from the Licensee's operations, acts or omissions;
- vii. any incident of food contamination, adulteration or food poisoning attributable to food or beverages served at the Food Trailer;
- viii. cancellation, suspension or non-renewal of the Licensee's FSSAI registration or license, or any adverse action by any food authority against the Licensee;
- ix. failure to obtain or maintain any statutory registration, license or approval required for lawful food service operations; or
- x. any breach of Clause 11 (Food Quality and Hygiene Compliance) that has not been remedied within forty-eight (48) hours of written notice from the Licensors.

13. INDEMNITY

a) The Licensors agree to indemnify the Licensee from or against all damages, prosecutions, demands, attachments, confiscation incurred or suffered by the Licensee and/or such or similar action adopted by any third party, Government, semi-Government or local authority or Court against the Licensee on account of non-payment of any unpaid statutory dues by the Licensors for the period prior to the commencement of the license. The Licensors further agree and admits that for such omissions and commissions the Licensee shall not be in any event liable or answerable or responsible to any local or Government or semi-Government authority or Court or third party. Notwithstanding anything to the contrary, the Licensors shall bear no liability whatsoever for any claims, losses, injuries, regulatory penalties or proceedings arising from: (a) the preparation, handling, storage or service of any food or beverage by the Licensee; (b) any illness, injury or

death of any person attributable to food or beverages served at the Food Trailer; (c) any act, omission, negligence or breach by the Licensee, its employees, agents or contractors; or (d) any regulatory non-compliance by the Licensee. All such liability shall rest exclusively and irrevocably with the Licensee.

b) The Licensee shall indemnify and hold harmless the Licensor from and against all claims, losses, damages, liabilities, penalties and expenses arising out of the Licensee's operations, employees, statutory non-compliance or breach of this Agreement.

14. NOTICE

a) Any notice or request given or made hereunder shall be served either personally, by post, facsimile, courier or registered post in accordance with the following particulars:-

i. In case of the Licensee :-

ELLEVEN HOSPITALITY AND MARKETING PRIVATE LIMITED

House No. HA-91, HA Block, Sector 104, Noida, Gautam Buddha Nagar, Uttar Pradesh - 201304

ii. In case of the Licensor:-

CROWNEST HOSPITALITY LLP

Site 5, Surajpur Kasna Road, Industrial Area, G-107, Greater Noida, Gautambuddha Nagar, Uttar Pradesh 201312, India

Any communication/notice/letter(s) sent by one Party to the other shall be delivered at the address stated herein above or at such other address notified in writing to the other Party. The communication/notices etc. may be sent by registered post, reputed courier, personal delivery or by fax and when sent, it must be backed with Postal receipts and Registered A/D acknowledgment or courier receipt and POD for valid service. Any change in the address shall be duly notified in writing to the other Party within seven (7) days of such change.

15. ASSIGNMENT

a) The Licensee hereby agrees that it shall not assign / grant sub-license of its rights and liabilities mentioned in this Agreement either in part or in whole to any third party without the prior written consent of the Licensor, except as otherwise permitted under this Agreement.

b) The Licensor hereby agrees that it shall not assign its rights and liabilities mentioned in this Agreement either in part or in whole to any third party without the prior written intimation to the Licensee, except as otherwise permitted under this Agreement.

16. DISPUTE RESOLUTION AND JURISDICTION

a) The Parties hereby agree that in the event of any difference and/or dispute arising out of the interpretation or application of the provisions of the Agreement or for any other reason whatsoever, the Parties shall at the first instance, immediately consult each other and amicably resolve the dispute(s) by way of mutual discussion, understanding and co-operation.

b) In the event that the Parties are unable to resolve the dispute at the first instance, due to any reason whatsoever, then such dispute or difference shall be resolved through arbitration as per the procedure mentioned herein below:

i. The dispute or difference shall be referred to a sole arbitrator.

ii. The arbitration shall be through SCOPE Forum of Arbitration, Greater Noida.

iii. The Rules of the above-mentioned Institutional Arbitration Forum shall be applicable to the arbitral proceedings.

iv. The Arbitration and Conciliation Act 1996 and Arbitration and Conciliation (Amendment) Act 2015 or any statutory modification or re-enactment thereof and the rules made there under for the time being in force shall apply to the arbitration proceedings under this clause.

v. The seat of arbitration shall be at Greater Noida.

vi. The proceedings shall be conducted in English language.

vii. The cost of the proceedings shall be equally borne by the Parties, unless otherwise directed by the sole arbitrator.

viii. Disputes having financial claims less than Rs. 5.0 lakhs shall not be referred to arbitration.

ix. The courts in Gautam Buddha Nagar, Uttar Pradesh, India shall have exclusive jurisdiction over any disputes arising from the Agreement and in relation thereto.

IN WITNESS WHEREOF the Parties hereto have set and subscribed their respective hands seal the day and year first hereinabove written.

SIGNED SEALED AND DELIVERED by the Within named Licensor **CROWNEST HOSPITALITY LLP** by the hand of its Authorised Partner, Mr. Abhishek Jindal in the presence of _____ (Witness)

SIGNED SEALED AND DELIVERED by the Within named Licensee **ELLEVEN HOSPITALITY AND MARKETING PRIVATE LIMITED** by the hand of its Authorised Signatory, Mr. Wasim Khan in the presence of _____ (Witness)

THE FIRST SCHEDULE HEREUNDER WRITTEN

Name of the Landlord	Capital Infratechomes Pvt. Ltd.
Address of the Landlord	Capital Athena, Sector 1, Noida, Uttar Pradesh
Name of the Licensor	Crownest Hospitality LLP
Address of the Licensor	Site 5, Surajpur Kasna Road, Industrial Area, G-107, Greater Noida, Gautambuddha Nagar, Uttar Pradesh 201312, India
Address of Premises	Commercial space outside Capital Athena, Sector 1, Noida, Uttar Pradesh 201318, India
Area of Site	2,500 sq. ft.
Land use	Commercial

THE SECOND SCHEDULE HEREUNDER WRITTEN

Name of the Licensor	Crownest Hospitality LLP
Address of the Licensor	Site 5, Surajpur Kasna Road, Industrial Area, G-107, Greater Noida, Gautambuddha Nagar, Uttar Pradesh 201312, India
Name of the Licensee	Elleven Hospitality and Marketing Private Limited (operating the “Momo Box” brand, through its Authorised Signatory Mr. Wasim Khan)
GST Registration No. of Licensee	09AAJCE6802C1ZT
Address of the Licensee	House No. HA-91, HA Block, Sector 104, Noida, Gautam Buddha Nagar, Uttar Pradesh - 201304
Address of Licensed Premises	Commercial space outside Capital Athena, Sector 1, Noida, Uttar Pradesh 201318, India
Area of Licensed Premises	70 sq. ft. (Approx.) [along with Food Trailer]
Land use	Commercial
Effective Date	15th September, 2026
Tenure Period	Three (3) years (15th September, 2026 to 14th September, 2029)
Lock-In Period	Eleven (11) months from the date of handover of the Food Trailer by the Licensor to the Licensee
License Fee / Minimum Guarantee (MG)	Rs. 50,000/- per month (payable on or before 7th of each month)
Revenue Share	18% of Gross Sales (excluding GST) OR License Fee / Minimum Guarantee, whichever is higher
CAM Charges	Rs. 20,000/- per month (subject to revision after 3 months on actuals)
Onboarding Fee	Rs. 1,50,000/- plus applicable GST (non-refundable)
Electricity Load	12 – 14 KW on need-basis (sub-meter to be installed by and at cost of Licensee)
Escalation on MG	6% per annum on each anniversary of Effective Date
Post-Dated Cheques (PDCs)	3 undated PDCs equivalent to License Fee / Minimum Guarantee to be provided at execution
Dispute Resolution	Arbitration; Seat: Greater Noida
Governing Law	Laws of India

ANNEXURE – I

Area of Operation	Monthly Revenue on Gross Sales (%) (Excluding GST) License Fee / Minimum Guarantee: Rs 50,000/- (Whichever is Higher)	
Premises	Gross Sales (In Rs)	Revenue %
Capital Athena, Sector 1	Total Gross Sales	18%

[DRAFT for review – Approved Menu to be annexed separately once received.]